



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

March 13, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20622
(SECOND REVISION)

EXPIRATION DATE: 2028-02-29

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Apple Inc.
Cupertino, CA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of low production lithium ion batteries exceeding 35 kg net weight by cargo-only aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Civil Aviation Organization's Technical Instructions for the Safe Transport of Dangerous Goods by Air (ICAO TI) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This special permit serves as an approval under Special Provision A88 and State Variation US 3 of the ICAO TI and as a "Competent Authority Approval" as defined under 49 CFR § 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and ICAO TI.

Tracking Number: 2023114151

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Hazardous Materials Table Column (9B) in that low production lithium ion batteries may not exceed 35 kg and § 173.185(a)(1) in that each battery must be of the type proven to meet the criteria in Part III, subsection 38.3 of the UN Manual of Tests and Criteria, except as specified herein.
5. BASIS: This special permit is based on the application of Apple Inc. dated November 4, 2023, and submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries</i>	9	UN3480	N/A

7. SAFETY CONTROL MEASURES:
- a. OPERATIONAL CONTROLS: The low production lithium ion batteries must:
- (1) Be comprised of not more than the number of cells and have not more than the rated energy capacity, identified in Apple, Inc.'s application for special permit dated March 6, 2018, on file with the Office of Hazardous Materials Safety (OHMS).
 - (2) Be charged at not more than 30% when offered for transportation aboard cargo aircraft.
 - (3) Be protected to prevent short-circuiting.
 - (4) The batteries must be equipped with an effective means of preventing dangerous reverse current flow for batteries connected in parallel.
 - (5) Be equipped with a battery management system that has been verified as preventing overcharge, short circuits and over-discharge between the batteries.
- b. TESTING REQUIREMENTS: Each cell within the low production lithium ion batteries must have passed the required tests in accordance with the UN Manual of Tests and Criteria, 5th Revised Edition.

c. PACKAGING REQUIREMENTS:

(1) The low production lithium ion batteries must be packaged in accordance with the following:

(i) Each battery must have a strong, impact-resistant outer casing.

(ii) The batteries must be packed in strong outer packagings such as sturdy wooden crates with metal clasps.

(iii) Only one battery may be packaged per outer packaging.

(2) The net mass of a battery that weighs 12 kg or more per package may not exceed that provided in Apple, Inc.'s application for special permit dated March 6, 2018, on file with the OHMS.

8. MARKING REQUIREMENTS: Each package, and overpack if used, prepared under the provisions of this special permit must be plainly marked with the special permit number: DOT-SP 20622.

9. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit, the HMR and the ICAO TI.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).

10. MODES OF TRANSPORTATION AUTHORIZED: Cargo-aircraft only.

11. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

12. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

13. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: KH